S.C. 19885

STATE OF CONNECTICUT	**:**	**SUPREME COURT**
V.	**:**	**STATE OF CONNECTICUT**
FERNANDO V.	**:**	**APRIL 5, 2019**

STATE'S MOTION FOR RECONSIDERATION EN BANC

Pursuant to Practice Book §§ 60-1 and 71-5, and for the reasons set forth herein, the State of Connecticut hereby requests that this Court reconsider its decision in the above-captioned case *en banc*. The majority in this sharply divided case misapplied the standard of review for harmless error. Reconsideration *en banc* is required to clarify that standard and to ensure that it is properly applied in this case and in future cases.

I. BRIEF HISTORY OF THE CASE

After a jury trial, the defendant was convicted of one count of sexual intercourse with a child 13 years of age or older but under 16, in violation of General Statutes § 53a-71(a)(1); one count of sexual intercourse with a person under 18, where the defendant was her guardian or otherwise responsible, in violation of General Statutes § 53a-71(a)(4); and two counts of risk of injury to a minor, in violation of General Statutes § 53-21(a)(2). He was sentenced to a total effective term of ten years in prison, followed by ten years of special parole.

The defendant appealed, and the Appellate Court reversed the judgment of conviction and ordered a new trial. State v. Fernando V., 170 Conn. App. 44 (2016). The state sought certification, which was granted on February 15, 2017. State v. Fernando V., 324 Conn. 923 (2017). In a decision released on March 26, 2019, this Court affirmed the judgment of the Appellate Court. State v. Fernando V., 331 Conn. 201 (2019).

II. SUMMARY OF THE APPELLATE AND SUPREME COURT DECISIONS

In his appeal to the Appellate Court, the defendant claimed, in pertinent part, that the trial court erred in excluding the testimony of the victim's boyfriend, P, regarding certain aspects of her behavior that he claimed were relevant both to impeach the testimony of the victim and her mother and to show that she did not exhibit behaviors that the state's expert testified were often exhibited by sexual assault victims. State v. Fernando V., 170 Conn. App. at 46. The Appellate Court began its analysis by reviewing the testimony of the relevant witnesses – the victim, B; her mother; P; and the state's expert. Based on its perception of this evidence, the Court found that,

> by questioning B and her mother about B's behavior and by eliciting testimony from its expert witness about the behavioral characteristics oftentimes displayed by sexual assault victims, the state opened the door to the defendant's proffered evidence. The state cannot have it both ways: on the one hand introducing its own evidence of B's behavior favorable to the state's case and, on the other, seeking to prevent the defendant from presenting his own contrary evidence. B's mother provided otherwise unrebutted testimony that B was more withdrawn than usual and stayed locked up in her room. The state then elicited testimony from Rosenberg that withdrawal was common among sexual assault victims, thereby giving damning context to the mother's observation. The defendant was entitled to produce his own witness in an effort to counter the state's evidence and demonstrate that B had not exhibited any behavioral characteristics that could be associated with sexual assault victims. That witness was P.

Id. at 64-65. The Court focused particularly on B's mother's testimony that B "had become withdrawn and stayed in her room," noting that this was 'in contrast" to P's testimony which, "taken as a whole, suggested no negative changes in B's behavior." Id. at 66.

Having found that the trial court's exclusion of P's testimony was an abuse of discretion, the Appellate Court next turned to the question of whether that exclusion was harmful. The Court acknowledged that, because the error was nonconstitutional, the defendant had to show that the excluded evidence "may have tended substantially to

influence the jury." Id. at 68. The Court found the defendant met this standard because P's testimony

> was important to the defense to the extent that it helped to paint B as having been an ordinary high school girl. Any evidence tending to show that B failed to exhibit behaviors often attributed to sexual assault victims or that dissuaded the jury from believing B's story generally, by implication, necessarily would also decrease the likelihood in the eyes of the jury that an assault had occurred.

Id. at 68.

The Appellate Court also agreed with the defendant that the state's case was not strong, that it rested on B's credibility, and that her "behavioral characteristics" were a "significant issue before the jury." Id. at 69. For all these reasons, the Court held that it did "not have a fair assurance that the court's exclusion of relevant evidence favorable to the defendant did not substantially affect the verdict." Id.

In the certified appeal to this Court, the state argued that the Appellate Court's decision should be reversed for two reasons: (1) the Appellate Court erred in finding that the exclusion of P's testimony was an abuse of discretion where it did not differ materially with that of B and her mother; and (2) the Appellate Court erred in finding that the exclusion of P's testimony was harmful where it was cumulative of evidence already before the jury and the state's case was stronger than reflected in the Appellate Court's opinion. State v. Fernando V., 331 Conn. at 201-11, 214-15. A majority of this Court rejected both of the state's arguments.

With respect to harm, the majority held that "P's testimony was not cumulative because it would have presented the jury with new material, not heard from any other witness, regarding certain indicia of sexual abuse identified by" the state's expert, in particular "whether B suffered from depression, anger or outbursts of violence, or if she had

trouble focusing on issues or tasks at hand." Id. at 219. The majority also found that the jurors "reasonably could have understood P's testimony that B did not exhibit any signs of depression as being inconsistent with the testimony of B's mother regarding B's withdrawal." Id. at 220. The majority held that the exclusion of P's testimony was compounded by the state's use of the testimony of its expert and B's mother in closing argument and that it was not rendered harmless by the defendant's ability to cross-examine B and her mother. Id. at 221-22.

Two dissenting justices, *Robinson, J.,* and *Kahn, J.*, disagreed with the majority's harmful error analysis, finding that,

> [a]lthough P's testimony might have been crucially important standing alone, its relative value in this case is significantly diminished for two reasons. First, whether a person shows behavioral signs of having been sexually abused is by no means definitive evidence on that point. As [the state's expert] testified during both direct and cross-examination, some sexual assault victims might show those trauma signs relatively soon, while other victims might never show any of those trauma signs. Some victims might experience no change in their ability to function in the near term, and might not manifest those signs until many years later, if at all.
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> Second, and more significantly, P's excluded testimony regarding the absence of these signs was consistent with that of B and [her mother] during both direct and cross-examination. B testified initially on direct examination that she had enrolled in college after graduating high school, and that she had maintained a grade point average of approximately 2.9 at both schools. She also testified that she had not experienced any lengthy absences from, or other problems at school or work because of behavioral or psychological reasons, noting that her only extended absence from high school was the result of a medical problem. B testified further that she was an active member of the college band, and that nothing had prevented her from pursuing that activity. B also contradicted her direct examination testimony that she was unable to have male friends, admitting that she had boyfriends during high school and that the defendant had not forbidden her from seeing them or having them as guests in the house.
>
> [B's mother] testified similarly, stating that there had been no changes in B's personality around the ages of twelve or thirteen years old, when the abuse escalated from improper touching to intercourse, because "she was always a

> little shy." Although [B's mother] had testified on direct examination that the defendant was strict with respect to B's grades, and preferred her to go out with female rather than male friends, she also confirmed that B had boyfriends during high school, and that the defendant had not interfered with those relationships. Moreover, while [B's mother] testified that, in the year prior to the defendant's arrest in this case, B had acted "more withdrawn and . . . that she would stay in her room," she then testified on cross-examination that B's activities had not changed, as she continued to enjoy reading and playing the flute from middle school into college. [B's mother] also testified that B had always had a "timid" demeanor since coming to the United States as a child, and that it had not worsened during high school, although she would "stay in her room more often, locked up."

Id. at 229-31.

The dissent found that this testimony "provided ample support for the defendant's theory of the case, even without P's similar testimony on point." In fact, as the dissent recognized, defense counsel's closing argument "relied on the testimony of B and [her mother] to argue in detail that B had not manifested behaviors consistent with sexual abuse trauma." Id. at 231. For example, defense counsel argued in closing that

> there was "no testimony by [B] that there was any behavioral changes. There's no testimony from [B] that she experienced any depression. No testimony from her that she experienced any suicidal ideations. No testimony that she experienced any eating disorders. No testimony from her that she had any violent tendencies. And more importantly, no evidence that after the alleged arrest of [the defendant], in 2011, did any of this come up. Which, as the [s]tate's own expert [witness] said, commonly is something that occurs. There's no evidence of any therapy or counseling ever received by [B]."

Id. at 232. Defense counsel also highlighted B's mother's testimony that "she didn't see any behavioral issues with [B]. Claimed [B] was always a bit timid, even since she came to the [United States] and there was no alleged inappropriate behavior. And that there was really no change. Didn't see any of [B's] grades slip. Didn't see [B] stop playing the flute." Id. at 233 (internal quotation marks omitted). He even specifically compared the testimony of B

and her mother to the state's expert, noting that there was "no evidence" of any of the behaviors the expert cited as typical of victims of sexual assault. Id.

The dissent then went on to specifically address the majority's reasoning, finding it flawed in several respects. First, the dissent disagreed "with the majority's conclusion that, because P's testimony was necessary for the jury to assess B's credibility, it therefore cannot be harmless error to remove from the fact finder the very tools by which to make a credibility determination," finding that that conclusion was "belied by the record in the present case, insofar as the jury had numerous tools by which it could assess the credibility of B's allegations, all of which were well highlighted by the defendant's closing argument." Id. at 233 (internal quotation marks omitted).

Second, the dissent disagreed with "the majority's reliance on the lack of physical evidence in the present case in support of its conclusion that the improper exclusion of P's testimony was harmful because the state's case was not strong." Id. at 234. In particular, the dissent noted that "the state's case was significantly strengthened by other circumstantial evidence that corroborated B's testimony—namely, that D, B's half brother and the son of the defendant, had seen B and the defendant acting secretively on two separate occasions," once when his father's room was locked and when his father opened the door D saw B putting on her belt and a second time when D was looking for B and his father and saw his father coming out of B's bedroom. Id.

Finally, the dissent recognized that, unlike other cases "in which the central issue was the complainant's credibility and this [C]ourt has found harmful evidentiary error to exist," P's testimony "did not pertain directly to the veracity of the complainant or the allegations themselves, but only to whether B had shown certain behaviors that [the state's

expert] had testified might—or might not be—present in a person experiencing the trauma of having been sexually assaulted." Id. at 236-37. The dissent also noted that the jury had returned a verdict of guilty on all counts after deliberating for several hours, indicating "that the trier of fact did not view this case as particularly close." Id. at 238. For all these reasons, the dissent concluded that "the exclusion of P's testimony was, at most, harmless error." Id. at 239.

III. SPECIFIC FACTS AND LEGAL GROUNDS FOR RECONSIDERATION

This Court's decision warrants reconsideration because, as the dissent recognized, the majority's finding of harmless error runs counter to both the facts of this case and applicable precedent. There was a wealth of evidence from the testimony of B and her mother that showed that B, for the most part, did not exhibit the behaviors that the state's expert described as typical of sexual assault survivors. The defendant could – and in fact did – rely on this evidence in support of his defense. Contrary to the majority's holding, P's testimony would have added little, if anything, to the evidence already before the jury.

Instead of considering the testimony of B and her mother in its entirety, as the dissenters did, the majority appears to have looked only to see if their testimony directly corresponded to P's proffered testimony. Id. at 219 While it may be true, as the majority stated, that "[n]o other witness had been asked whether B suffered from depression, anger or outbursts of violence, or if she had trouble focusing on issues or tasks at hand;" id. at 219; the majority overlooks the testimony of B and her mother that B had good grades, was in college, had not experience any lengthy absences from college or high school due behavioral or psychological reasons, played flute in the school band, and held down a job working with children at a local gym. Id. at 230-31. From this testimony, the jury could

reasonably have inferred that B did not exhibit the symptoms described by the state's expert as typical of sexual assault victims.

By overlooking this testimony and the inferences that could reasonably flow from it, the majority distorts the applicable standard of review for determining the harmlessness of nonconstitutional errors. The question is not, as the majority would have it, whether the exact evidence that was improperly excluded was before the jury in some other form. Instead, as the majority itself recognized, the reviewing court must "examine the impact of the . . . evidence on the trier of fact and the result of the trial" in determining whether the defendant has met his burden of proving harm. Id. at 227 (quoting State v. Favoccia, 306 Conn. 770, 808–09 (2012) (internal quotation marks omitted)). To do this, the court must consider "a number of factors, such as the importance of the witness' testimony in the [defendant's] case, whether the testimony was cumulative, the presence or absence of evidence corroborating or contradicting the testimony of the witness on material points, the extent of cross-examination otherwise permitted, and, of course, the overall strength of the prosecution's case." Id. (quoting State v. Favoccia, 306 Conn. at 808-09 (internal quotation marks omitted)). These factors presuppose that the evidence be considered in its totality, along with the reasonable inferences that the jury could draw therefrom, in order to determine whether the jury's verdict was substantially swayed by the error.

Although the majority set forth this standard in its opinion, they failed to properly apply it to the facts of this case. Reargument *en banc* is thus necessary to clarify the harmless error standard and ensure that it is correctly applied here and in future cases.

The majority also erred in its assessment of the strength of the state's case. Although there was no corroborating physical evidence or any direct witnesses to the

sexual assaults, as is typical in sexual assault cases, B's brother twice observed the defendant acting suspiciously around B. B's mother also testified as a constancy of accusation witness, further corroborating B's testimony. T-2/25/14 at 144-45. Any inconsistencies in B's story or lack of detail in her account were fully explored on cross-examination. Id. at 34-74, 81-82. The state's expert was also cross-examined about the behavioral characteristics of sexual assault victims. T-3/4/14 at 91-94. Again, the majority overlooks this evidence in its harmless error analysis, yet another misapplication of the standard of review.

Moreover, as the dissent recognized, P's testimony went only to whether B exhibited behaviors that may or may not be exhibited by sexual assault victims, and not to the truthfulness of her complaint or allegations. This differentiates this case from others cited by the majority in which the central issue was the complainant's credibility and this Court found the exclusion of evidence to be harmful evidentiary error. See, e.g., State v. Favoccia, 306 Conn. at 807–11 (admission of improper expert testimony that indirectly vouched for teenage victim's credibility harmful when there was evidence that called into question "battered [victim's] veracity [and] would give any reasonable juror pause," including testimony by complainant's father "that he 'did not know whether to believe' her allegations against the defendant" because, as corroborated by testimony of his long-term girlfriend, it was factually impossible for victim's allegations to be true); State v. Ritrovato, 280 Conn. 36, 57–58 (2006) (improper preclusion of defendant from questioning victim about her claim of virginity harmful when it pertained to her truthfulness and "this emotionally charged subject was mentioned repeatedly . . . during the state's case-in-chief" and, given lack of corroborating or physical evidence, testimony on subject "would have

cast sufficient doubt on [victim's] credibility to have influenced the jury's verdict on the sexual assault charges"); State v. Iban C., 275 Conn. 624, 641–45 (2005) (improper expert bolstering via diagnosis of "child sexual abuse" harmful as to one count of risk of injury to child in which "state's case rested almost entirely on the victim's credibility" with no physical or medical evidence, but was harmless with respect to second count of risk of injury to child, to which defendant confessed); State v. William C., 267 Conn. 686 707–708 (2004) (improper exclusion of DCF records harmful because "the information contained in [those] records evince[d], if believed by the trier of fact, a pattern of vacillations with regard to the very allegations of abuse for which the defendant was standing trial," as well as victim's statements "that she would lie if she thought it necessary, and statements of the victim's physician as to the victim's capacity to distort reality and come to believe her distortions"); State v. Grenier, 257 Conn. 797, 806–808 (2001) (expert testimony that improperly described child victim's accusations as "very credible" harmful in case with no physical or medical evidence, and no corroboration beyond constancy of accusation, because it "struck at the heart of the central—indeed, the only—issue in the case, namely, the relative credibility of [the victim] and the defendant" (internal quotation marks omitted)).

IV. CONCLUSION

In sum, then, the majority misapplied the standard for harmless error review, and reconsideration *en banc* is warranted in this sharply divided case to clarify the harmless error standard and to ensure that it is correctly applied here and in future cases.

Respectfully submitted,

STATE OF CONNECTICUT

BY: **/s/**

DENISE B. SMOKER
Senior Assistant State's Attorney
Office of the Chief State's Attorney
Appellate Bureau
300 Corporate Place
Rocky Hill, CT 06067
Tel. (860) 258-5807
Fax (860) 258-5828
Juris No. 410627
Denise.Smoker@ct.gov
DCJ.OCSA.Appellate@ct.gov

CERTIFICATION

Pursuant to Practice Book §§ 62-7 and 66-3, I certify that this document does not contain any names or personal identifying information the disclosure of which is prohibited, that it complies with all applicable rules of appellate procedure, and that a copy hereof was sent electronically to: Mary A. Beattie, P.O. Box 656, Wallingford, CT 06492, (203) 430-8849 (telephone), electronic mail at mary.schairer@gmail.com, on this 5th day of April, 2019.

/s/
DENISE B. SMOKER
Senior Assistant State's Attorney